B

BG NO: 0506823BG0000210

SBI

STATE BANK OF INDIA
TRADE FINANCE CPC PUNE
CTS No 2001,Durga Datta Building
Tilak Road, Pune

Tel No. :
Fax No. : 020-25512527
SWIFT No. : SBININBB600
PIN Code : 411030

28-02-2023

To,
OBEROI CONSRUCTIONS LIMITED
COMMERZ 3RD FLOOR INT I BUSINESS PARK
OBEROI GARDEN CITY OFF W E HIGHWAY
GOREGAON EAST
MUMBAI 400063

DEAR SIR(S),

Guarantee Number	:	0506823BG0000210
Date of Issue	:	28-02-2023
Guarantee Amount	:	INR 607,700.00
Date of Expiry	:	31-03-2023
Date of Claim	:	31-03-2023
Applicant Name	:	NIHVA TECHNOLOGIES PVT LTD
E Stamp Certificate No.	:	
E Stamp Issuance Date & Time	:	
State of Execution	:	
Stamp Duty Type/Article No.	:	
Bank Guarantee Amount	:	INR 607,700.00
Amount of Stamp duty Paid	:	0.00
Issuing Bank Branch	:	
Bank Guarantee Beneficiary	:	OBEROI CONSRUCTIONS LIMITED

We confirm having Issued / Extended the captioned Bank Guarantee in your favour on behalf of our above named Constituent and the same signed by the officers of the Bank.

YOURS FAITHFULLY,

AUTHORISED SIGNATORY - 1
Neelima Mishra
SS No. M-13977

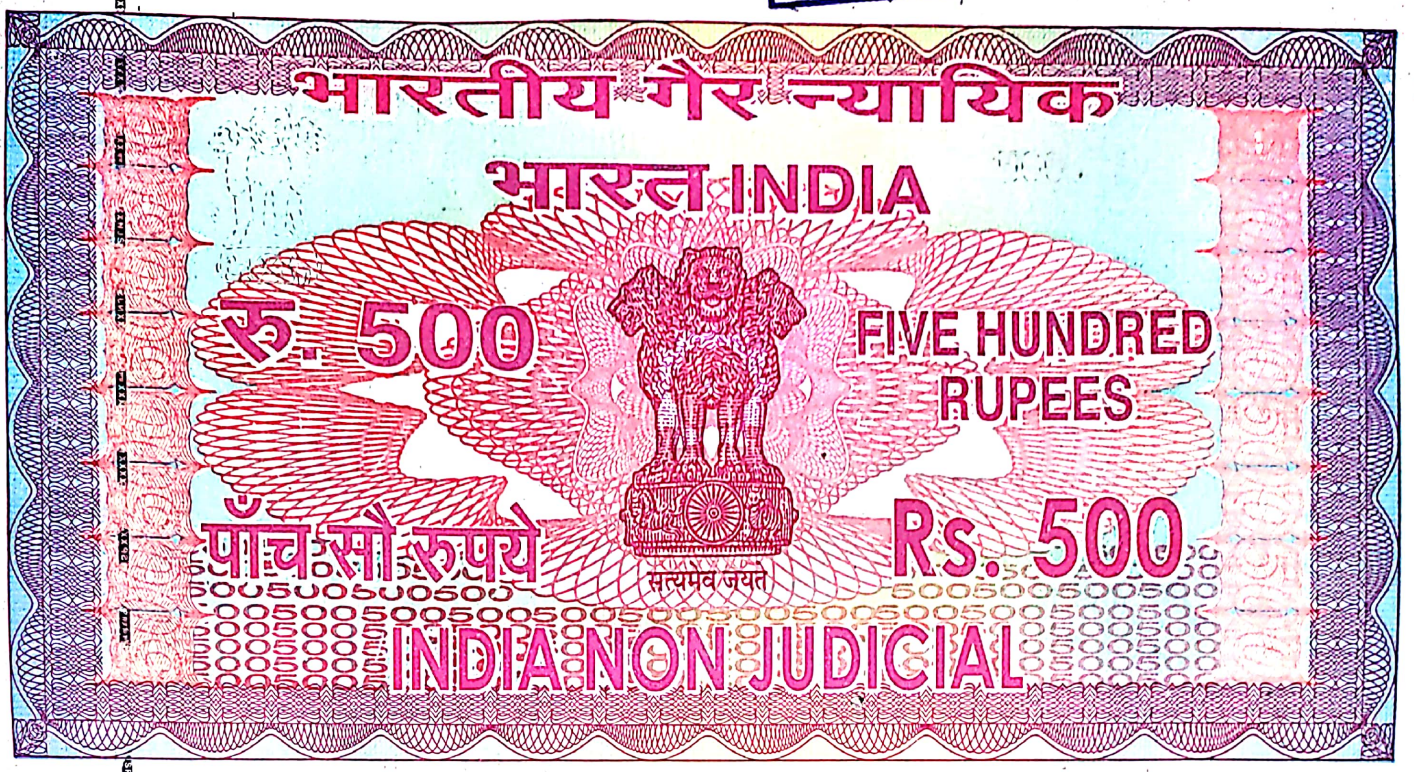
भारतीय स्टेट बैंक / बैंक STATE BANK OF INDIA 04523 I.F. Pimpri Bl. आय.एफ.पिंपरी शाखा, पुणे

AUTHORISED SIGNATORY - 2
अनीष आनंद
Anish Anand
A-8312
(2nd signatory required, if BG is for Rs. 50000/- and above)

Feb 28, 2023 5:31 PM

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महाराष्ट्र MAHARASHTRA ◐ 2022 ◐ BV 493271

14 FEB 2023

अनु.क्र. 904816 दि. BG मु.शु.रक्कम-५००/-

दस्ताचा प्रकार

दस्त नोंदविणार आहेत का? होय / नाही

नियतकाचे वर्णन NIHVA TECHNOLOGIES PVT. LTD

187/G-Block,1st Floor Thermax Chowk

मुद्रांक विक्रत घेणाऱ्याचे नांव MIDC,Above Renault-Showroom

पत्ता Chinchwad Pune-411019

दुय्यम निबंधकांचे नांव SBT

दस्त हाताळणीचे ठिकाण पत्ता Dipak Ishte / Chinchwad Pune

03 FEB 2023

प्रधान मुद्रांक विक्रेता
हवेली पुणे महाराष्ट्र

श्री. विश्वनाथ रामचंद्र जाधव
परवाना क्र. २२०११५३
प्लॉट नं. १४०, से. नं. १८,
फलेनगर, चिंचवड, पुणे-१९

मुद्रांक विक्रेत [illegible] सही

Neelima Mishra
SS No. A-8312

Anish Anand
SS No. A-8312

DEED OF BANK GUARANTEE FOR MOBILZATION ADVANCE

This Deed of Guarantee ("Bank Guarantee") is made at Pune on this day of by **STATE BANK OF INDIA** Bank, having its registered office at **SBI Trade Finance , CTS No. 2001, durga datta Building, Sadashiv peth, Tilak Road, Pune-411030** and a branch at Kasardadi (hereafter called as the "Bank" which expression shall, unless repugnant to context or contrary to the meaning thereof, include its successors) and has been issued in favour of **Oberoi Constructions Limited,** having its registered office at Commerz, 3rd Floor, International Business Park, Oberoi Garden City, Off W.E. Highway, Goregoan (East), Mumbai 400 063 (hereinafter called as the "Employer" which expression shall, unless repugnant to the context or contrary to the meaning thereof, include its successors and assigns).

भारतीय स्टेट बँक/बैंक STATE BANK OF INDIA 04523 I.F. Pimpri Br. अप.एक. पिंपरी शाखा, पुणे-४११०१८

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WHEREAS the "Employer" has entered into a Supply PO no. 4610009491 dated 09.02.2023 (hereinafter called "PO") with M/s. NIHVA Technologies Pvt Ltd, having its registered office at 1st Floor, Above Renault show room Plot No. 187, G - Block, Thermax Chowk MIDC, Chinchwad, Pune Pune-411019 (hereinafter called as the "Supplier" which expression shall, unless repugnant to the context or contrary to the meaning thereof, include its successors and permitted assigns) for executing of Supply mentioned in the PO at the Employer's project Maxima P/F Automatic Retractable Roof situated at Opp. Green Acres, Jogeshwari (E) Jogeshwari Vikhroli Link Road, Mumbai-400060.

AND WHEREAS, in accordance with the terms of PO, the Employer had agreed to pay a sum of Rs. 6,07,700/- (Rupees Six Lakh Seven Thousand Seven Hundred Only) to the Supplier as Mobilization advance. The Employer has agreed to pay the aforesaid Mobilization advance on the condition that the Supplier has deposited an irrevocable bank guarantee in favour of the Employer for an equivalent amount.

The Employer has accordingly called upon the Supplier to furnish an irrevocable bank guarantee from a Bank, guaranteeing payment of a sum not exceeding Rs. 6,07,700/- (Rupees Six Lakh Seven Thousand Seven Hundred Only) (hereinafter called the "Guaranteed Amount") and the Bank has agreed to furnish the same in favour of the Employer as hereinafter appearing.

NOW IT IS HEREBY AGREED AS UNDER:

1. The Bank do hereby unconditionally and irrevocably guarantee and undertake to pay to the Employer under this Bank Guarantee any and all money payable by the Supplier to the extent of the Guaranteed Amount on demand being made by the Employer at any time up to 31-03-2023 (hereinafter called "the Expiry Date") without any demur, reservation, contest, recourse or protest and/or without any reference to the Supplier. Any such demand made by the Employer on the Bank shall be conclusive and binding notwithstanding any difference between the Employer and the Supplier or any dispute pending before any Court, Tribunal, Arbitrator or any other authority. The Bank undertakes not to revoke this Bank Guarantee during its currency without the prior written consent of the Employer and further agrees that this Bank Guarantee shall continue to be enforceable until the Employer discharges this Bank Guarantee or until the Expiry Date (subject to extension in accordance hereof), whichever is earlier.
2. The Employer shall have the fullest liberty without affecting in any way the liability of the Bank under this Bank Guarantee from time to time to extend the time for performance of the PO by the Supplier. The Employer shall have the fullest liberty without affecting this Bank Guarantee, to postpone from time to time the exercise of any power vested in them or of any right which they might have against the Supplier, and to exercise the same at any time in any manner, and either to enforce or to forbear to enforce any covenants contained or implied in the PO between the Employer and the Supplier or any other course or remedy or security available to the Employer and the Bank shall not be released from its liabilities under these presents by any exercise by the Employer of the liberty with reference to matters aforesaid or by reason of time being given to the Supplier or any other forbearance act or omission on the part of the Employer or any indulgence by the Employer to the Supplier or of any other matter or thing whatsoever which under the law relating to sureties would, but for this provision, have the effect of so releasing the Bank from its liability.

3. Should it be necessary to extend this Bank Guarantee beyond the date of expiry of this Bank Guarantee on account of extension of time being granted by the Employer to the Supplier for the due fulfilment of the obligations under the PO, the Bank undertakes to extend the period of this Bank Guarantee until such time as may be reasonably required, upon receiving written instructions from the Supplier on or before the expiry of this Bank Guarantee. If for any reasons the extension is not granted after receiving written request from the Supplier, the amount covered under this Bank Guarantee shall forthwith become payable to the Employer, notwithstanding that the PO is continuing and / or whether the Employer has terminated the PO or not, and / or preferred any claim against the Supplier.

अनीष आनंद
Anish Anand
SS No. A-8312

नीलिमा मिश्रा
Neelima Mishra
SS No. M-13977

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4. The liability of the Bank under this Bank Guarantee shall not be discharged, released, affected or impaired in any way by reason of any modification, amendment or variation in or to any of the obligations, conditions or provisions of the PO by reason of any arrangement made between the Employer and the Supplier or by reason of any breach or breaches of the PO by the Employer or by the Supplier, whether the same is or are made or occurs with or without the knowledge or consent of the Bank. The Bank further agrees that no invalidity in the PO nor its avoidance, suspension or termination shall discharge, affect or impair its liability hereunder and that no waiver, compromise, indulgence or forbearance, whether as to time, payment, performance or any other matter afforded by the Employer to the Supplier under the PO, shall discharge, affect or impair the liability of the Bank hereunder.

5. The Bank further agrees that the Employer shall be the sole judge whether the Supplier has committed any breach or breaches of any of the terms and conditions of the PO and the extent of loss, damages or costs, charges and expenses suffered or incurred or would be suffered or incurred by the Employer on account thereof.

6. The Bank also agrees that the Employer at its option shall be entitled to enforce this Bank Guarantee against the Bank as a principal debtor, in the first instance without proceeding against the Supplier and notwithstanding any security or other guarantee that the Employer may have in relation to the Supplier's liabilities.

7. The liability of the Bank to make payment to the Employer as stated hereinabove shall not be discharged, released, affected or impaired in any way by reason of any one or more of the following:

   (a) Any dispute between the Employer and the Supplier.
   (b) Any suit or proceeding regarding the subject matter of the Supplier.
   (c) Insolvency, liquidation, winding up, dissolution or cessation of business by the Supplier.
   (d) Any negligence, omission or failure on the part of the Employer to commence any proceeding against the Supplier.
   (e) Any concession, failure, time or leniency granted to the Supplier by the Employer.

8. The payment under this Bank Guarantee shall be made by the Bank without requiring the Employer to invoke any legal remedy that may be available to the Employer and the Employer shall be entitled at its absolute discretion to determine whether an occasion has arisen for a demand to be made and as such, the Bank shall not be entitled to question or dispute the validity of the demand.

9. The Bank agrees and undertakes that this Bank Guarantee is irrevocable during its tenure including further extensions if any except with the written consent of the Employer.

10. The Bank hereby agrees that in the event of part invocation, this Bank Guarantee shall remain valid for the balance amount either by substituting with a new bank guarantee or any other mechanism with same terms and conditions of this guarantee till the Expiry Date (subject to extension in accordance hereof) mentioned in this Bank Guarantee.

11. The Bank further agrees and undertakes that the Bank shall not be entitled to postpone, delay or avoid payment to the Employer on the ground that the Guaranteed Amount has not become due or that the Supplier has disputed its liabilities or on any other ground.

12. This Bank Guarantee is in addition to and not in substitution for any other guarantee executed by the Bank in favour of the Employer on behalf of the Supplier.

13. Notwithstanding anything to the contrary contained herein, this Bank Guarantee shall operate and be valid independently of other, similar guarantees given at the request of the Supplier in favour of the Employer.

14. The Bank confirms that it has the power to issue this Bank Guarantee including under the Bank's Memorandum & Articles of Association and the issuance of this Bank Guarantee has been duly authorized by the Bank and the undersigned has full power and authority to act for and on behalf of the Bank in respect of this Bank Guarantee.

नीलिमा मिश्रा
Neelima Mishra
SS No. M-13977

अनीष आनंद
Anish Anand
SS No. A-8312

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15. This Bank Guarantee shall not be affected by any change in the constitution of the Bank nor shall this Bank Guarantee be affected by any change in the constitution of the Employer or any amalgamation or absorption with any other body corporate and this Bank Guarantee will be available to or enforceable by such body corporate.

16. This Bank Guarantee shall exclusively be governed by the laws of India, and the Courts at Mumbai shall have exclusive jurisdiction.

17. Any notice by way of request, demand or otherwise hereunder may be sent by post to the Bank addressed as aforesaid and if sent by post it shall be deemed to have been received by the Bank at the time when it would be delivered in due course by post and in proving such notice when given by post, it shall be sufficient to prove that the envelope containing the notice was posted and a certificate signed by an officer of the Employer that the envelope was so posted, shall be conclusive. However, such claim request should be received by the Bank in writing on or before the expiry of this Bank Guarantee (subject to extension in accordance hereof). The Employer shall not be required to serve on the Supplier copies of any notices issued to the Bank under this Bank Guarantee.

Notwithstanding anything contained hereinabove:

1) Our liability under this guarantee shall not exceed Rs. 6,07,700/- (Rupees Six Lakh Seven Thousand Seven Hundred Only)
2) This bank guarantee shall be valid up to 31-03-2023 being the date of expiry of the guarantee.
3) The beneficiary's right as well the bank's liability under this guarantee shall stand extinguished unless a written claim or demand is made under this guarantee on or before 31-03-2023.

This Bank Guarantee is Non-assignable and Non-transferrable.

Dated this 28th day of Feb 2023

AS WITNESS our hand

Signed by :

(Name and designation of officer)

for and on behalf of

अनीष आनंद
Anish Anand
(Name of Bank)

(Signature)

नीलिमा मिश्रा
Neelima Mishra
SS No. M-13977

in presence of:

Name :

Designation:

भारतीय स्टेट बैंक / बैंक STATE BANK OF INDIA 04523 I.F. Pimpri Br. आय.एफ.पिंपरी शाखा, पुणे

भारतीय स्टेट बैंक / बैंक STATE BANK OF INDIA

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